



DEPARTMENT OF PUBLIC SAFETY GEORGIA STATE PATROL

PURSUIT CRITIQUE

TROOPER NAME – TFC William Mefford #601, TPR James O'Shields #200, SFC Stephen Kennedy #754 and TPR Jonathon King #302

Work Assignment: Troop/Division - A; Post/Unit – 43 - Calhoun and Post 5 - Dalton

INCIDENT REPORT # DPS00169080

Related Crash Reports: _____ ; _____ ; _____

P.I.T. Involved: No

S.C.R.T. Involved: No

Special Investigations Unit Involved: No

Use of Force Involved: No

MEETING

1. Document the date, time and location of the pursuit critique meeting with the involved trooper.

Date: 6/28/2024

Time: 1530 Hours

Location: Post 43 and Post 5

2. List all personnel present at the meeting by name and rank. Include the trooper, an NCO in whose territory the pursuit was terminated, and the trooper's immediate supervisor.

Personnel present: Lieutenant Tim Nichols #36, SFC Stephen Kennedy #754, TFC William Mefford #601, TPR James O'Shields #200 and TPR Jonathon King #302

INITIATION

1. Provide the date and time the trooper became involved in the pursuit.

Date: 6/8/2024

Time: 1350 Hours

2. Explain the circumstances that led to the trooper's involvement in the pursuit.

On 6/8/2024, at approximately 1350 hours, TFC Mefford observed a blue motorcycle traveling northbound at what appeared to be a high rate of speed. TFC Mefford confirmed the speed via LIDAR at 114 miles per hour and proceeded to intercept the violator. When TFC Mefford attempted to stop the motorcycle, the violator failed to stop and a pursuit ensued.

3. If trooper's involvement was the result of a request from another agency, provide details regarding the request.

☒ N/A

If Yes, explain:

4. List the number and identity of other agencies and officers involved in the pursuit.

☐ N/A

If needed, list: Along with TFC Mefford, SFC Kennedy, TPR O'Shields and TPR King were involved in the pursuit.

5. If other occupants were in the patrol vehicle, identify them and state their reason for being in the vehicle.

☒ N/A

If Yes, list:

6. Did the trooper take appropriate safety precautions?

☒ Yes

☐ No

If no, explain:

7. Did the trooper eliminate distractions such as FM radio noise?

☒ Yes

☐ No

If no, explain:

COMMUNICATION

1. If the reporting trooper initiated the pursuit by means of observing a violation and attempting a traffic stop, explain the communication that took place between the trooper and the CEO.

☐ N/A

If Yes, explain: TFC Mefford contacted the Troop A Communications Center by radio and advised them that he was in a pursuit. TFC Mefford provided his location, direction of travel and description of the vehicle. Senior Dispatcher Smith received this information and created a CAD call for the pursuit.

2. Did the trooper relay pertinent information to the CEO including:

- Location and direction of travel.
- Description of the pursued vehicle.
- Number and description of occupants.
- Information regarding the use of firearms, threat of force, or other hazard.
- Options for terminating the pursuit.
- Observed danger to public safety.
- Any need for assistance.

☒ Yes

☐ No

If no, explain:

3. Explain any communication that took place between the CEO and other law enforcement agencies or officers in the area.

☐ N/A Explain: Once the pursuit initiated, Senior Dispatcher Smith cleared the radio for emergency traffic before conducting a broadcast of the pursuit to all Troop A Troopers. Dispatcher Silvers contacted the Gordon County 911 and the Hamilton County, Tennessee 911 Centers by telephone to advise them of the pursuit and to request assistance. Dispatcher Hunter contacted the Catoosa County 911 Center by telephone to advise them of the pursuit and to request assistance.

4. If the reporting trooper became involved in the pursuit at the request of another agency, explain any communication that took place between the trooper and another officer of the requesting agency. Give details of communication between the CEO and the requesting agency regarding the location, direction of travel, nature of the offense, any pending warrants, and details of erratic driving behavior illustrating the potential danger to the public if the suspect is not immediately apprehended.

☒ N/A If Yes, explain:

5. Did the trooper articulate his observations?

☒ Yes ☐ No If no, explain:

6. At the conclusion of the pursuit, did the trooper advise the CEO immediately, so other units would be familiar with the location to offer assistance, or slow in an effort to reduce the likelihood of further risk of injury to either a trooper or a member of the general public?

☒ Yes ☐ No If no, explain:

7. Discuss any needed areas of improvement with the CEO.

☒ N/A If Yes, explain:

PURSUIT

1. Describe the route the pursuit traveled, its duration and distance.

Describe: The pursuit initiated on I-75 North near mile marker 313 and continued northbound until TFC Mefford terminated the pursuit at mile marker 354. The pursuit traveled approximately 41 miles and lasted 18 minutes and 51 seconds.

2. Were the trooper's actions during the pursuit objectively reasonable?

☒ Yes ☐ No If no, explain:

3. If the pursuit traveled into another post's territory, explain whether the initiating trooper yielded to a trooper whose territory the pursuit was in.

☐ N/A If Yes, explain: Once the pursuit entered into Whitfield County and Post 5 - Dalton's territory, TFC Mefford relinquished the primary position momentarily to TPR O'Shields. When it was obvious that the motorcycle was out performing TPR O'Shield's patrol vehicle, TFC Mefford took over the primary position.

4. If the initiating trooper yielded the primary position to another unit, explain whether he proceeded to the termination point of the pursuit to provide guidance and information for the arrest of the violator.

☒ N/A If Yes, explain:

5. Explain if there were any factors during the pursuit that indicated the possible commission of a felony.

☐ N/A

If Yes, explain: The violator's actions during the pursuit would have supported a charge of Felony Fleeing and Attempting to Elude.

6. Did the trooper articulate his observations?

☒ Yes

☐ No

If no, explain:

7. Did the trooper practice commentator driving?

☒ Yes

☐ No

If no, explain:

8. Did the trooper remain calm and professional during the pursuit?

☒ Yes

☐ No

If no, explain:

DRIVING SKILLS

1. Did the trooper use due caution when operating his vehicle during the pursuit?

☐ Yes

☒ No

If no, explain: As the pursuit approached TPR King from behind, he changed lanes in an attempt to get in front of the violator in order to slow him down. However, due to the excessive speed of the violator and TPR King's reaction time, he almost struck the motorcycle and TFC Mefford's vehicle.

2. Were the driving skills/techniques initiated appropriately?

☒ Yes

☐ No

If no, explain:

3. Were the driving skills/techniques appropriate during the pursuit?

☒ Yes

☐ No

If no, explain:

4. Were the driving skills/techniques appropriate during termination?

☒ Yes

☐ No

If no, explain:

5. Did the trooper appear to experience adrenalin rush, tunnel vision, or any other internal/external factors?

☒ No

If Yes, explain:

6. Did the trooper get into the danger zone due to adrenalin rush, tunnel vision, or other factors?

☒ No

If Yes, explain:

EQUIPMENT

1. Were the blue lights and siren in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

2. If the patrol car was equipped with wig-wag headlights, were they in operation during the entire pursuit?

☒ Yes

☐ No

If no, explain:

3. Was the in-car camera working properly?

☒ Yes

☐ No

If no, explain:

4. Was the trooper's microphone working properly?

☒ Yes

☐ No

If no, explain:

TERMINATION

1. Did the trooper continue the pursuit to a conclusion? If not, explain the reasons.

☒ Yes

☐ No

If no, explain:

2. Was there a good probability of the suspect's arrest at a later time because of positive identification?

☒ N/A

If Yes, explain:

3. Articulate attempts taken by the trooper to utilize pursuit termination techniques, such as tire deflating devices, roadblocks, P.I.T. maneuver, and trooper discretion.

☒ N/A

Explain:

4. Expound on safety precautions utilized by the trooper during and after the pursuit.

☐ N/A

Explain: All those involved, utilized all their emergency equipment and operated their patrol vehicles in a responsible manner.

5. Articulate the existing traffic conditions during the pursuit, realizing the conditions may differ at various times during the pursuit.

Explain: The pursuit occurred during daytime hours with clear skies and a dry road surface. The traffic conditions along I-75 at the time of the pursuit would be described as moderate to heavy.

6. Address whether there are any conditions that would create additional danger to the public by continuing the pursuit.

☒ N/A

If Yes, explain:

7. Address whether there were any conditions that necessitated the pursuit being brought to an immediate conclusion and describe the conditions.

☒ N/A

If Yes, explain:

8. Establish whether the violator was an immediate threat to the trooper, the public or themselves.

☐ N/A

If Yes, explain: During the pursuit, the violator drove at speeds in excess of 100 miles per hour, passed in the emergency lane and recklessly changed lanes between other vehicles. The high speed reckless driving of the violator posed a great risk to the public and clearly demonstrated no regard for the safety of others.

9. Outline whether the use of deadly force was justified and if so, why it was justified.

☒ N/A If Yes, explain:

10. Establish whether the method of termination was reasonable based on the facts gathered during the pursuit, and state those facts.

☐ N/A If Yes, explain: With only pursuit related felony charges pending, SFC Kennedy made the decision for all those involved to terminate the pursuit before going into the State of Tennessee.

11. If there were any injuries, state who received them, the type and severity.

☒ N/A If Yes, explain:

12. If there was a fatality, provide basic facts surrounding the circumstances.

☒ N/A If Yes, explain:

13. Address any damage to vehicles.

☒ N/A If Yes, explain:

TROOPER'S ABILITIES AND EXPERIENCE

1. Prior pursuits (compare if appropriate).

☐ N/A If Yes, explain: TFC Mefford and SFC Kennedy have been involved in numerous pursuits. This was TPR King's third pursuit and TPR O'Shield's first pursuit as State Troopers.

2. Past use of techniques and high speed driving.

☐ N/A If Yes, explain: All involved have received E.V.O.C. and Advanced E.V.O.C. Training.

ISSUES ADDRESSED

1. Positives.

☐ N/A If Yes, explain: SFC Kennedy exercised good judgement/decision making skills when he instructed the other Troopers to terminate the pursuit before going into the State of Tennessee.

2. Areas for improvement.

☒ N/A If Yes, explain:

3. Other considerations.

☒ N/A If Yes, explain:

RESPONSE FROM TROOPER OR SUPERVISOR

1. Allow trooper and supervisor an opportunity to respond or add comments.

☒ N/A

If Yes, explain:

CORRECTIVE ACTION TAKEN

1. Describe any corrective action taken as a result of the trooper's actions during the pursuit.

☐ N/A

If Yes, explain: A coaching session was held with TPR King in reference to his attempt to slow the violator down by changing lanes in front of him and almost striking the motorcycle and TFC Mefford's vehicle. It was stressed to him that although a violator bears responsibility for any injuries or property damage that occurs during a pursuit, he (TPR King) and the Department would be held liable for any injuries or damage caused by his reckless actions.

Lt. T. L. Nichols #36
Reviewing Officer

Lt. T. L. Nichols #36

7/2/2024
Date